		any evidentiary support. Thus, Plaintiff's assertion of those causes of action was in violation of section 128.7(b)(2) and (b)(3). Moreover, Plaintiff failed to withdraw those unwarranted causes of action despite Defendants' compliance with the safe harbor period. Therefore, Defendants' Motion for Sanctions striking the first through fifth and eleventh through seventeenth causes of action are GRANTED. The Court "may award to the party prevailing on the motion the reasonable expenses and attorney's fees incurred in presenting or opposing the motion" if warranted. (Code Civ. Proc., § 128.7(c)(1).) Here, Plaintiff failed to withdraw the unmeritorious causes of action after being given the opportunity to do so during the safe harbor period. Further, Plaintiff has not presented any persuasive argument regarding the viability of her statutory claims for work that was performed outside of this state by an employer that is not based in this state or doing business in this state. Monetary sanctions for Defendants' reasonable expenses and attorneys' fees incurred in bringing this Motion are warranted to deter future frivolous filings. Defendants seek $12,060 in monetary sanctions. The Court finds the amount to be significantly inflated and instead awards Defendants $4,000 in monetary sanctions against Plaintiff's counsel only. (Code Civ. Proc., § 128.7(d)(1).) Moving party to give notice.
108	**Mejia Villa vs. Castaneda** **23-01314626**	Motion for Sanctions Pursuant to RP, the "Motion to Dismiss Pursuant to Code of Civil Procedure Section 583.210 must be heard prior to any ruling on the instant Motion because Code of Civil Procedure Section 583.250 prohibits any further proceedings or prosecution of this action, as service of process was never effectuated on numerous named defendants, who are necessary parties, and

		which require the dismissal of this entire action." Since that motion is set for 8/11/2026, this motion is continued to 8/11/26. Defendant/Responding Party to give notice.
109	**Dorado vs. General Motors LLC** **24-01406222**	Motion for Attorney Fees Plaintiff Gilberto Dorado seeks an Order awarding his attorneys' fees in the amount of (1) $39,075.25, and (2) an additional $3,487.50 for Plaintiff's counsel to review Defendant's Opposition, draft the Reply brief and supplemental declaration, and prepare for and attend the hearing on this Motion. In total Plaintiff requests the Court order Defendant to pay attorney fees in the amount of $42,562.75. A prevailing buyer in an action under the Song-Beverly Act shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action. (Civ. Code, § 1794, subd. (d).) The plain wording of section 1794, subdivision (d) requires the trial court to base the prevailing buyer's attorney fee award upon actual time expended on the case, as long as such fees are reasonably incurred—both from the standpoint of time spent and the amount charged. (Hanna v. Mercedes-Benz USA, LLC (2019) 36 Cal.App.5th 493, 506.) Civil Code section 1794 requires the trial court to make an initial determination of the actual time expended, and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount. A prevailing buyer has the burden of showing that the fees